

SENATE BILL 789

By Walley

AN ACT to amend Tennessee Code Annotated, Title 33
and Title 63, relative to mental health.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 63-22-113(a), is amended by
deleting the subsection and substituting:

(a)

(1) This part does not apply to activities and services of a student intern or trainee in marriage and family therapy who is pursuing a program of studies in marriage and family therapy at an accredited institution of higher learning if these activities are performed under supervision and are a part of a supervised program of study.

(2) A person enrolled in a program as described in subdivision (a)(1) may use the titles "marital therapy intern," "family therapy trainee," or "student therapist."

(3) A person who is under supervision and pursuing independent licensure in marriage and family therapy and has completed a graduate degree as described in subdivision (a)(1) may use "pre-licensed marriage and family therapist" or postgraduate designations.

SECTION 2. Tennessee Code Annotated, Section 63-22-115(a)(2), is amended by deleting the subdivision and substituting:

(2) "Approved supervisor" means a licensed marriage and family therapist, or any other licensed mental health professional who is either an American Association for

Marriage and Family Therapy-approved supervisor or a supervisor-in-training under supervision mentoring with a current American Association for Marriage and Family Therapy-approved supervisor;

SECTION 3. Tennessee Code Annotated, Section 63-22-121, is amended by deleting the section and substituting:

(a)

(1) An associate license may be issued by the board for a licensed professional counselor designated as a mental health service provider applicant who has completed the academic coursework and training required for the license sought and who has successfully passed the examination required by the board.

(2) An associate license obtained pursuant to this section authorizes an applicant to perform the functions specified in § 63-22-122(5), for which the applicant is seeking licensure under qualified supervision.

(3) In order to receive an associate license, an applicant must submit to the board a completed application for an associate license with the applicant's completed application for the desired license and all appropriate fees.

(4) If an applicant is granted an associate license, then the license must remain valid for up to four (4) years and is eligible for extension at the discretion of the board.

(5) The applicant shall notify the board and present supporting documentation demonstrating the satisfactory completion of the required postgraduate supervised experience in a clinical setting. The board shall then grant or deny the license application based on satisfactory completion of all requirements for licensure.

(b)

(1) The board may issue an associate license to a marital and family therapist applicant who has completed the academic coursework and training required for the license sought. In order to retain such associate license, the applicant must take the written examination required by the board within nine (9) months following issuance of the associate license.

(2) An associate license obtained pursuant to this section authorizes the applicant to engage in the practice of marital and family therapy, as defined by § 63-22-115(a)(7), under the supervision of an approved supervisor, as defined by § 63-22-115(a)(2) and (9).

(3) In order to receive an associate license, the applicant must submit the following to the board:

(A) A completed application for an associate license;

(B) Satisfactory evidence of an agreement with an approved supervisor under whose supervision the applicant intends to practice; and

(C) All appropriate fees.

(4) If an applicant is granted an associate license, then the license is valid for up to four (4) years and is eligible for an extension at the discretion of the board. The applicant must submit to the board an application for the independent license and must present supporting documentation demonstrating the satisfactory completion of the required amount of post-master's degree supervised experience in a clinical setting under an approved supervisor. The board shall then grant or deny the application for the independent license based on satisfactory completion of all requirements for independent licensure. If the board approves or denies the application for the independent license or if the

board revokes the associate license for any reason, then the associate license must cease to be valid and must be returned to the board.

(5) The holder of an associate license as a marital and family therapist shall not represent such associate licensee to be a licensed marital and family therapist. The holder of such a license may only represent such associate licensee to be an "associate licensed marriage and family therapist" or by the use of the letters "AMFT."

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.